

Babu Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 August 2012 · WRIT - C No. 39505 of 2012 · **Writ dismissed; petitioner relegated to para 6.9 complaint.**

HEADNOTE

A writ challenging the correctness of an electricity bill and a citation issued on that bill is not entertainable. The consumer must file a complaint under paragraph 6.9 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Babu Khan petitioned the Allahabad High Court to quash a citation dated 11 July 2012, which he said had been issued on a wrong electricity bill. The petition in substance challenged the correctness of that bill. After hearing counsel for the petitioner and for the respondents, a Division Bench of Ashok Bhushan and Sunita Agarwal, JJ. held that the statutory course was a complaint under paragraph 6.9 of the U.P. Electricity Supply Code, 2005, and dismissed the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

billing dispute — statutory complaint

HOLDING

A writ petition that challenges the correctness of an electricity bill and a citation issued on that bill cannot be entertained; the remedy is an appropriate complaint under paragraph 6.9 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ challenging the correctness of an electricity bill and a citation issued on that bill is not entertainable. The consumer must file a complaint under paragraph 6.9 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL AND THE CITATION DATED 11 JULY 2012 WERE CORRECT
left to a paragraph 6.9 complaint ¶ 1